KA 26-00000

SUPREME COURT OF THE STATE OF NEW YORK

APPELLATE DIVISION

FOURTH JUDICIAL DEPARTMENT

THE PEOPLE OF THE STATE OF NEW YORK,

Respondent,

-against-

ALEX Q. DOE,

Defendant-Appellant.

Ind. No. 2025-0000

APPEAL FROM A JUDGMENT OF THE SUPREME COURT, MONROE COUNTY (JANE EXAMPLE, J.), RENDERED MARCH 14, 2026

BRIEF FOR DEFENDANT-APPELLANT

EXAMPLE COUNTY PUBLIC DEFENDER

Attorney for Defendant-Appellant

100 Example Street

Rochester, New York 14600

(585) 555-0100

October 1, 2026

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STATEMENT OF QUESTIONS INVOLVED

1. Did the trial court err in denying suppression of the handgun recovered from defendant's car, where the police had no founded suspicion of criminality to justify the stop and the frisk that followed?

The court below answered this question in the negative.

2. Was defendant denied the effective assistance of counsel where trial counsel did not pursue a police report that the prosecution disclosed after the suppression hearing?

The court below did not reach this question.

STATEMENT OF THE CASE

A. Procedural History

Defendant was indicted on one count of criminal possession of a weapon. He moved to suppress the handgun, and the court held a hearing under CPL 710.60. The court denied the motion. Defendant then pleaded guilty, reserving his right to appeal from the suppression ruling. The court imposed a sentence of two years in prison and five years of post-release supervision.

B. The Traffic Stop and the Frisk

At about 9:40 p.m. on June 2, 2025, Officer Samuel Example stopped defendant's car on Lake Avenue for a defective tail lamp. The officer testified that the lamp was dark when he first saw the car. He did not record the stop on video, and the lamp was not repaired or photographed. (R. 41-42.)

The officer asked defendant for his license and registration. He also asked defendant to step out of the car. The officer testified that defendant appeared nervous, that his hands were "moving around," and that he had been stopped in the same area

before. (R. 44-46.) The officer did not testify to any observation of a weapon, a furtive movement toward the interior of the car, or a report of criminal activity. (R. 47.)

After defendant stepped out, the officer patted him down and then searched the passenger compartment. He found a loaded handgun under the driver's seat. (R. 49-51.) The officer arrested defendant for criminal possession of the weapon. (R. 52.)

C. The Suppression Hearing and the Late Disclosure

At the hearing the People called only the officer. Defense counsel cross-examined him about the tail lamp and the frisk. The court asked no questions. The People did not disclose a dispatch log from the stop until after the hearing closed. (R. 58-59.) The log shows a call from the same officer, made four minutes before the stop, reporting a "suspicious vehicle" at a different address. (R. 62.) Trial counsel did not ask the court to reopen the hearing, and did not seek an adjournment to investigate the call. (R. 66-67.)

ARGUMENT

POINT I

The Stop and the Frisk Were Not Supported by Founded Suspicion

The People bore the burden of showing that the stop and the search were lawful. The officer's own account does not meet it. A stop for a defective equipment violation requires a traffic infraction, and the officer's testimony about the lamp was uncorroborated and unrecorded. The court credited it without comment, which is not enough to carry the People's burden at a suppression hearing.

A. The officer had no basis to extend the stop

Even if the stop was justified at its inception, the officer had to limit his inquiry to the reason for it. Once he had checked the license and registration, he had no further lawful

purpose unless he had a founded suspicion that criminal activity was afoot. *Terry v. Ohio*, 392 U.S. 1, 21 (1968) requires "specific and articulable facts." The officer identified none. Nervousness alone does not supply a founded suspicion, and an unspecified prior stop in the area adds nothing particular to this defendant.

The inquiry the officer made went beyond the traffic infraction. He asked defendant to step out of the car while the license check was still pending. That step was a seizure in its own right, and it was not supported by any articulable fact. The People cannot justify it by pointing to what the officer found afterward. Under the framework of *People v. De Bour*, 40 N.Y.2d 210 (1976), a request to exit the vehicle must rest on a reasonable suspicion of criminality, and the record shows none.

B. The frisk exceeded any permissible scope

Even if the officer could lawfully order defendant out of the car, the frisk was not justified. A protective pat-down requires an articulable belief that the person is armed and dangerous. *Terry*, 392 U.S. at 27. The officer testified only that defendant's hands were "moving around." He did not testify that he saw a bulge, a weapon, or any threatening gesture. (R. 46.) The search of the passenger compartment followed from the unlawful frisk and cannot be sustained as a search incident to arrest, because the arrest itself was the product of the unlawful search.

The handgun must be suppressed, and the judgment must be reversed.

POINT II

Counsel Was Ineffective for Failing to Pursue the Call

Defendant was entitled to effective assistance of counsel at every stage. Under *Strickland v. Washington*, 466 U.S. 668, 687 (1984), a defendant must show that counsel's

performance fell below an objective standard of reasonableness, and that there is a reasonable probability that the result would have been different but for the error.

A. Counsel did not seek to reopen the hearing

The dispatch log showed a call about a "suspicious vehicle" made by the same officer minutes before the stop. That entry bore directly on whether the officer had an independent reason to suspect defendant, and on whether his testimony was accurate. Trial counsel did not ask the court to reopen the hearing, did not request time to investigate the call, and did not cross-examine the officer about the entry. (R. 66-67.)

There was no strategic reason for these omissions. The entry was in the People's own disclosure, and counsel had no reason to expect it would not be used. A reasonable attorney who received the log would have sought to reopen the hearing, or would have explained on the record why it could not be used. Counsel did neither.

B. The omission prejudiced defendant

The suppression ruling turned on whether the officer's account was credible and whether he had a reason to act before the stop. The call bore on both. There is a reasonable probability that, had the log been put to the officer, the court would have found the stop or the frisk unjustified. The handgun would then have been suppressed, and the plea that followed from its admission would not have been entered on these terms.

POINT III

The Late Disclosure Violated Brady, and the Interest of Justice Warrants Relief

A. The dispatch log was favorable and material

The People must disclose evidence favorable to the defense that is material to guilt or punishment. *Brady v. Maryland*, 373 U.S. 83, 87 (1963). The log was favorable because

it called the officer's reason for the stop into question. It was material because the suppression ruling depended on that reason. Disclosure after the hearing closed came too late to be used at the hearing, which is a violation of the People's continuing duty.

B. In the alternative, the interest of justice requires a reduction

Even if the suppression ruling is affirmed, this Court may reverse or modify a judgment in the interest of justice. CPL 470.15 (6) (a). The record shows a contested stop, a single witness, an unrecorded traffic infraction, and a late disclosure that the defense never had a chance to test. Those features warrant relief as a matter of discretion, and the sentence should be reduced.

CONCLUSION

For these reasons, the judgment of conviction should be reversed and the handgun suppressed. In the alternative, the Court should reverse for a new suppression hearing or, in the interest of justice, reduce the sentence.

Respectfully submitted,

s/ JANE COUNSEL
Assistant Public Defender
100 Example Street
Rochester, New York 14600
(585) 555-0100
counsel@example.org

October 1, 2026

PRINTING SPECIFICATIONS STATEMENT

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Signed under 22 NYCRR 130-1.1-a(a), which is also the signer's representation that this statement is accurate.

s/ JANE COUNSEL
Assistant Public Defender
100 Example Street
Rochester, New York 14600
(585) 555-0100
counsel@example.org